

Basant Lal v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 30 January 2013 · Writ-C No. 5228 of 2013 · **Writ disposed of; petitioner relegated to Supply Code billing-objection remedy.**

HEADNOTE

A writ seeking quashing of an electricity demand notice was disposed of because the U.P. Electricity Supply Code, 2005 already supplies a statutory remedy of raising objections against the bill or charges. A request to pay in installments may be considered by the Executive Engineer.

FACTUAL SUMMARY

The petitioner, Basant Lal, filed a writ in the Allahabad High Court seeking quashing of a demand notice dated 10 January 2013 for electricity charges. Counsel produced an electricity bill dated 7 January 2013 and offered to deposit the amount in installments. The State and the distribution licensee were represented. The petitioner invited the Court to quash the demand in writ rather than leave the billing dispute to the statutory machinery under the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

statutory-remedy-billing-objections

HOLDING

A consumer who challenges an electricity demand notice or bill in writ must first avail the statutory remedy under the U.P. Electricity Supply Code, 2005 of raising objections against the bill or charges; a request to deposit in installments may be considered by the Executive Engineer. The demand was not quashed. ¶ 1

PRINCIPLE TAGS

clause-7.10-forum-ombudsman-route-for-billing-grievances Writ against a demand notice and bill closed so the consumer must take the Supply Code objection route rather than High Court as a first forum. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE DEMAND NOTICE DATED 10.1.2013 AND THE ELECTRICITY BILL DATED 7.1.2013

Left to the statutory objection remedy under the Supply Code; installment request left to the Executive Engineer. ¶ 1